

BEFORE THE FEDERAL MARITIME COMMISSION

MEDITERRANEAN SHIPPING COMPANY -
INVESTIGATION FOR COMPLIANCE WITH
§§ 41104(a) AND 41102 OF DEMURRAGE OR
DETENTION CHARGES UNDER THE CHARGE
COMPLAINT PROCEDURES OF 46 U.S.C. § 41310

DOCKET NO. CC-001

**MSC MEDITERRANEAN SHIPPING COMPANY S.A.
PETITION FOR LEAVE TO FILE SUR-REPLY**

Pursuant to 46 C.F.R. §502.69(a), Respondent MSC MEDITERRANEAN SHIPPING COMPANY S.A. (“MSC” or “Respondent”), through its undersigned counsel, respectfully states and petitions as follows:

On March 27, 2023, the Office of Enforcement (“OE”) filed its “Reply to Respondent’s Answer to Order to Show Cause” (“Reply”). After carefully reviewing the Reply MSC believes that a brief response to the Reply is necessary to address certain points and matters contained in that filing, which could aid the Commission in its ruling.

On March 28, Counsel for Respondent conferred with the OE regarding Respondent filing a Sur-Reply. Respondent understood that the OE is of the view that the regulations do not give Respondent a right to respond to their reply, and that OE will take that position before the FMC. Respondent further understands OE reserved the right to oppose a petition for leave on more substantive grounds.

Thus, MSC respectfully request leave to file a brief Sur-Reply and hereto tenders said filing, which would be filed should the Hon. Commission grant it such leave. (See, Enclosure A.)

WHEREFORE, MSC respectfully requests that this Honorable Commission GRANT it leave to file a brief Sur-Rely to the OE's Reply.

Dated: April 13, 2023

Respectfully submitted,

/s/Vincent M. DeOrchis

/s/Wook Chung

/s/Kaspar Kielland

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Mediterranean Shipping Company S.A.

CERTIFICATE OF SERVICE

I certify that on the 13th day of April 2023, a true and correct copy of the foregoing MSC Mediterranean Shipping Company S.A. Petition for Leave to File Sur-Reply were served by email on all counsel of record in accordance with 46 CFR Part 502.

/s/Kaspar Kielland
Kaspar Kielland

FEDERAL MARITIME COMMISSION
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